

- RAG Learning

2.8 Civil Rights

Politics — AQA (7152) — Paper 2 (Government and Politics of the USA and Comparative Politics)

US civil rights have advanced through three routes — **constitutional amendment**, **judicial interpretation** and **legislation backed by mass mobilisation** — and each has a different security profile. Understanding which route a right rests on tells you how vulnerable it is, and that is the analytical spine of this topic.

1. Constitutional foundations

Amendment	Year	Effect
Thirteenth	1865	Abolished slavery and involuntary servitude
Fourteenth	1868	Citizenship by birth; due process and equal protection of the laws, binding on the states. The basis of most modern civil rights litigation
Fifteenth	1870	No denial of the vote on grounds of race, colour or previous servitude
Nineteenth	1920	Votes for women
Twenty-Fourth	1964	Abolished poll taxes in federal elections
Twenty-Sixth	1971	Voting age lowered to 18

Exam Tip: The Reconstruction amendments (13th–15th) lay **substantially dormant for nearly a century**. Text alone achieves nothing without institutional will: *Plessy* (1896) upheld

segregation under the very Fourteenth Amendment that *Brown* (1954) later used to strike it down. The words did not change — the Court did.

2. Segregation and its dismantling

- ***Plessy v Ferguson* (1896)** — upheld "separate but equal", legitimising Jim Crow segregation across the South.
- **Jim Crow** — state and local laws enforcing segregation, backed by literacy tests, poll taxes, grandfather clauses and violence to suppress black voting.
- ***Brown v Board of Education* (1954)** — unanimous ruling that segregated public schools violate equal protection, because separate educational facilities are *inherently* unequal. Overturned *Plessy*.
- **Implementation was slow and resisted** — a decade of further litigation, federal enforcement and federal troops at Little Rock. A ruling is not self-executing.

3. The civil rights movement

Methods and why the combination mattered

Method	What it achieved	What it could not
Litigation (NAACP Legal Defense Fund)	Established that segregation was unconstitutional — a nationwide ruling no legislature of the period would have delivered	Could not compel implementation, nor reach private discrimination
Non-violent direct action (Montgomery bus boycott, sit-ins, freedom rides, the 1963 March on Washington)	Generated the political pressure litigation could not — televised images of peaceful protesters met with violence shifted northern opinion decisively	Could not itself change the law

Legislation	Provided enforcement machinery and reached private actors in employment, housing and public accommodation	Required the political conditions the movement had to create first
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The landmark statutes

- **Civil Rights Act 1964** — prohibited discrimination on grounds of race, colour, religion, sex or national origin in employment, education and public accommodation, with federal enforcement.
- **Voting Rights Act 1965** — outlawed literacy tests and similar devices, and introduced **pre-clearance**: designated jurisdictions with a history of discrimination had to obtain federal approval *before* changing voting rules.
- **Fair Housing Act 1968** — discrimination in housing.

4. Voting rights today

Shelby County v Holder (2013)

The Court struck down **section 4(b)** of the Voting Rights Act — the formula determining which jurisdictions were subject to pre-clearance — holding it was based on decades-old data and no longer reflected current conditions.

Effect: pre-clearance survived in principle but became **inoperative**, since no valid coverage formula existed. Congress has not enacted a replacement.

Consequence: several formerly covered states introduced stricter voter ID requirements, reduced early voting, closed polling places and purged rolls. These now take effect immediately and can only be challenged *afterwards* through litigation — slower, more expensive, and placing the burden on challengers rather than on the jurisdiction.

Exam Tip: The debate here is precise and worth reproducing: critics say the ruling removed the most effective enforcement mechanism in US civil rights law on the reasoning that *it had worked*. Defenders say the coverage formula genuinely was outdated and Congress could have

updated it — so the failure is legislative, not judicial. Both are defensible; saying which you find stronger, and why, is the evaluative move.

Rucho v Common Cause (2019)

Held that partisan gerrymandering claims are **non-justiciable in federal courts**, leaving remedy to state constitutions and ballot initiatives.

Section 2 of the VRA: *Allen v Milligan (2023)* and *Louisiana v Callais (2026)*

After *Shelby County*, the main surviving protection was **section 2**, which lets challengers sue over voting rules or maps that dilute minority votes. In ***Allen v Milligan (2023)*** the Court, 5–4, upheld section 2 and required Alabama to draw a second majority-Black congressional district. But in ***Louisiana v Callais (29 April 2026)*** it ruled 6–3 that race-based districting drawn to satisfy section 2 was an unconstitutional racial gerrymander. Section 2 claims now effectively require proof of **intentional discrimination**, leaving the VRA's remaining protection much weaker.

5. Affirmative action

Affirmative action — policies taking positive steps to increase the representation of groups historically subject to discrimination, particularly in university admissions, public employment and government contracting.

Case	Ruling
<i>Regents v Bakke (1978)</i>	Racial quotas unconstitutional, but race may be <i>one factor among several</i>
<i>Grutter v Bollinger (2003)</i>	Upheld race-conscious admissions on diversity grounds
<i>Students for Fair Admissions v Harvard (2023)</i>	Race-conscious university admissions programmes held unconstitutional

For	Against
Formal legal equality cannot dissolve the compounding effects of centuries of slavery, segregation and discrimination in wealth, education and networks	Treating individuals differently by race is itself racial discrimination, and sits uneasily with the equal protection clause's guarantee to <i>every person</i>
A rule treating unequally situated people identically perpetuates the inequality	May stigmatise beneficiaries by casting doubt on their achievement
Diversity has educational value and improves professional effectiveness and public trust	Disadvantages other minority groups, notably Asian American applicants
Representation in medicine, law and policing serves communities historically poorly served	Targets race rather than economic disadvantage, which may be the better measure of need

6. Rights beyond race

- **LGBT rights** — *Obergefell v Hodges* (2015) established a constitutional right to same-sex marriage; *Bostock v Clayton County* (2020) held that Title VII's prohibition on sex discrimination in employment covers sexual orientation and gender identity.
- **Abortion** — *Roe v Wade* (1973) recognised a constitutional right; ***Dobbs v Jackson (2022)*** overturned it, returning regulation to the states and producing sharply divergent state laws.
- **Disability** — the Americans with Disabilities Act 1990.
- **Black Lives Matter** — decentralised, social-media-driven mobilisation that shifted the national agenda on policing without a formal hierarchy or single leadership.
- **Rights going backwards?** — ***United States v Skrametti (2025)*** upheld Tennessee's ban on gender-affirming care for minors, declining to apply heightened scrutiny. In January 2025 Trump revoked **Executive Order 11246** (affirmative action in federal contracting, in force since 1965) and ordered federal DEI programmes ended.

7. Civil liberties and the Bill of Rights

- **Second Amendment** — *District of Columbia v Heller* (2008) recognised an individual right to keep a handgun at home for self-defence; *NYSRPA v Bruen* (2022) extended it to carrying a handgun in public and required gun laws to fit the nation's history and tradition of firearm regulation.
- **First Amendment: speech** — *Citizens United v FEC* (2010) treated independent political spending as protected speech.
- **First Amendment: religion** — *Kennedy v Bremerton School District* (2022) protected a public-school coach's prayer on the field, loosening the separation of church and state.
- **Criminal justice** — the Fourth to Eighth Amendments protect suspects and defendants: *Gideon v Wainwright* (1963) guaranteed a lawyer for those who cannot afford one; *Miranda v Arizona* (1966) required suspects to be told their rights.

8. Immigration and rights

- **DACA** — *DHS v Regents* (2020) blocked Trump's first-term rescission of the programme as arbitrary under administrative law, without ruling on DACA's own legality.
- **Birthright citizenship** — a January 2025 executive order sought to deny citizenship to children of undocumented and temporary migrants. Lower courts blocked it as contrary to the Fourteenth Amendment's citizenship clause.
- **Trump v CASA (June 2025)** — the Court limited **universal injunctions**, so lower courts can generally protect only the parties before them; challengers turned to class actions, and the merits of the birthright order went to the Supreme Court.
- **Alien Enemies Act removals** (2025) — the Court required that detainees receive notice and a real chance to challenge their removal in court.

9. The security of rights — the central evaluation

Route	Strength	Vulnerability
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Amendment	Most secure — beyond legislative reversal and beyond judicial reinterpretation away	Practically unattainable today; the Reconstruction amendments lay dormant for a century without enforcement
Judicial interpretation	Fastest — nationwide effect with no legislative majority needed, invaluable where elected branches are hostile	What one Court grants another can withdraw — <i>Dobbs</i> reversed a fifty-year precedent after three appointments
Legislation	Reaches private discrimination; supplies enforcement machinery and funding; carries democratic legitimacy	Can be weakened without repeal — <i>Shelby County</i> disabled the VRA's key mechanism and Congress has not restored it; <i>Louisiana v Callais</i> (2026) sharply narrowed section 2

Exam Tip: For a 25-mark question on whether rights are adequately protected, the strongest structure is: *legally entrenched and judicially enforceable (strength) — but defined by interpretation, so dependent on nine appointments (weakness) — and varying by state under federalism (weakness) — while formal equality has not delivered substantive equality in wealth, incarceration and policing outcomes (the deepest problem).*

Key terms

Term	Definition
Equal protection clause	Fourteenth Amendment guarantee of equal protection of the laws
Due process	Constitutional requirement of fair legal procedure
Separate but equal	The <i>Plessy</i> doctrine permitting segregation; overturned by <i>Brown</i>
Jim Crow	State and local laws enforcing racial segregation in the South

Pre-clearance	VRA requirement that designated jurisdictions obtain federal approval before changing voting rules
Affirmative action	Positive measures to increase representation of historically disadvantaged groups
De jure / de facto segregation	Segregation by law / in practice without legal sanction
Substantive due process	Doctrine protecting certain rights from government interference regardless of procedure — the basis of <i>Roe</i> and <i>Obergefell</i>
Non-justiciable	Not capable of resolution by a court

Essential examples

- ***Plessy* (1896) → *Brown* (1954)** — the same amendment, opposite readings.
- **Little Rock 1957** — federal troops enforcing *Brown*; rulings need enforcement.
- **Civil Rights Act 1964 / Voting Rights Act 1965** — legislation reaching what rulings could not.
- ***Shelby County* (2013)** — pre-clearance disabled; new state restrictions followed.
- ***Obergefell* (2015) and *Bostock* (2020)** — rights extended, though *Skrametti* (2025) and the 2025 revocation of EO 11246 show the direction has since shifted.
- ***Louisiana v Callais* (2026)** — section 2 of the VRA narrowed to intentional discrimination.
- ***Trump v CASA* (2025)** — universal injunctions curbed amid the birthright-citizenship litigation.
- ***Dobbs* (2022)** — a right withdrawn; federalism producing divergent state regimes.
- ***SFFA v Harvard* (2023)** — affirmative action in admissions ended.